LR No. 255210 dated 30/01/24 endorsed in favour PGCIL and transporter is instructed to deliver the goods to 400kV GIS KPS-2 Khanda site

Terms and Conditions of Carriage Owner's Risk

1. Where a Bank has agreed to accept this Lorry Receipt as a consignee/endorsee or holder thereof or many other capacity for the purpose of giving advance to and / or collection or discounting bills of any of its customers whether before or after the entrustment of the goods to the Transport Operators for carriage, the Transport Operators hereby agree, in consideration of the same to hold themselves liable and shall be deemed to have held themselves liable at all material times directly to the Bank concerned as if the Bank were a party to the contract here in contained with the right of recourse against the Transport Operator to the extent of full value of the goods handed over to the Transport Operator for carriage storage and delivery.

2. The Transport Operator undertakes to and shall deliver the goods in the like order and conditions as received subject to any deterioration in the condition of goods resulting from natural causes like effect of temperature, weather conditions, etc. to the Consignee Bank or to his order or his assigns on the relative receipt being surrendered to the Transport Operator duly discharged by the Bank which had accepted it for lending to and collection of or discounting the bills of its customers or for collection, or to its agent for collection, or duty discharged by the holder of the receipt along with a letter from such Bank authorising delivery of the goods and only the Bank and the holder of the receipt entitled to delivery as aforesaid shall have rights of recourse against the Transport Operator for all claims arising thereon.

3. The Transport Operator shall have the right to entrust the goods to any other lorry or service for transport. In the event of the goods being so entrusted by the Transport Operator to another carrier, the other carrier shall as between the consignor, the Consignee Bank and he Transport Operator be deemed to be the Transport Operator's agent so that the Transport Operator shall notwithstanding the delivery of the goods to the other carrier, continue to be responsible for the safety of the goods and for their due delivery at the designation.

4. The consignee shall be primarily liable to pay the transport charges and all other incidental charges if any at the Head Office of the Transport Operator in or at any other agreed place.

5. The Transport Operator shall have the right to dispose of perishable lying undelivered after 48 hours of arrival without any notice.

6. The Transport Operator shall have the right to dispose of other goods after 80 days of arrival *after due notice* in writing to the consignor, the Consignee Bank and the holder interested (including the Banker under clause I above)

7. In either case the Bank or claiment with Bank's authority shall be entitled to the proceeds. Less freight and demurrage, and the Transport Operator shall render full accounts to him immediately after sale.

8. Consignee Banks accepting Lorry Receipt under clause I above will not be liable for payment of any charge arising out of any lien of the Transport Operator against the Consignor or the buyer. Where it becomes necessary for any bank to obtain delivery of the consignment from the Transport Operator in terms of the Scheme, (because the buyer does not retire the documents or because of any other reason) the Transport Operator shall deliver the goods unconditionally to the Bank on payment of the normal freight and storage charges only in connection, with the consignment in question without claiming any lien on the goods in respect of any monies due by the consignor or consignee to the Transport Operator on any other account whatsoever.

9. Notwithstanding any statement made with this Lorry receipt or any circumstances surrounding the issue of this Lorry Receipt the Transport Operator shall at all times observe its obligation to the Consignee Bank named in this Lorry Receipt and shall be responsible for safe and due delivery and for any loss or damage to the goods or consignment, that arises as a result of negligence, default, failure to take reasonable precaution, mala fides or criminal or fraudolent actions of the Transport Operator of any of its Managers, Agents, Transport Employees, Partners, Directors, or Business associates, or branch etc.

10. The consignor is responsible for all consequences of any incorrect or false declaration.

11. Nature contents, condition and value of the consignments as declared by the sender to the Transport Operator are specified in this Lorry Receipt. The Transport Operator carries the goods as packed at Carrier's risk, a special rate of Rs. for every hundred rupees of value declared by sender having been charges and paid.

Material received and subjected to physical verification.

Ratul Kumar
03.02.24

Pelton
(POWERGRID)

BHEL TBG